



DAVID VOEGELE

Judge Executive
dvoegele@oldhamcountky.gov

KEVIN NUSS

Deputy Judge Executive
knuss@oldhamcountky.gov

PLANNING COMMISSION

RE-APPOINT IVA DAVIS WITH A TERM TO EXPIRE 8/21/2030

Iva Davis

Crestwood, KY 40014

DRAFT

OLDHAM COUNTY FISCAL COURT

100 W. JEFFERSON STREET, SUITE 4, LAGRANGE, KY 40031
OFFICE (502) 222-9357 • FAX (502) 222-3210

WWW.OLDHAMCOUNTKY.GOV

THEISS LAW OFFICES, PLLC
ATTORNEYS AT LAW
209 North First Street
LaGrange, KY 40031
TEL. 502-222-9421 FAX 502-222-1419
E-MAIL theisslawoffice@gmail.com (James L. Theiss)
jimmydan.theiss@gmail.com (James D. "J.D." Theiss)

JAMES L. THEISS
JAMES D. ("J.D.") THEISS

June 12, 2026

Hon. David Voegele
Oldham County Judge, Executive
Oldham County Fiscal Court Bldg.
100 West Jefferson Street
LaGrange, Kentucky 40031

Re: LaGrange Fire Protection District - Trustee Derek Jones replacement

Dear Judge Voegele:

I'm following up on my previous letter to you dated May 15, 2026. As I stated in that letter, Derek Jones resigned from his position as an elected firefighter trustee with the LaGrange Fire Protection District effective April 9, 2026. Upon his resignation, the remainder of Mr. Jones' term as a trustee must be filled by a LFPD firefighter appointed by you. After Mr. Jones' resignation, the LaGrange Fire Protection District held an internal election amongst their membership that elected Tim Congleton to fill that position. The Trustees of the LaGrange Fire Protection District then passed along Mr. Congleton's name with a request that you appoint him to serve out the remainder of Mr. Derek Jones' term.

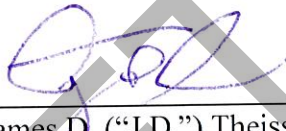
Unfortunately, with the recent revision to KRS 75.031 that went into effect on April 10, 2026, a firefighter trustee must also either (1) reside within the district or (2) be a full-time employee. Mr. Congleton did not meet either criteria for the position as he is part-time and lives in Henry County. Therefore, a second election within the LFPD membership was then held in May 2026, with the additional criteria for eligible candidates being added. Two candidates submitted their names for that election and the results of that election were as follows:

First place:	Major Bryan Hearne (17 votes)
Second place:	Captain Mike Catalano (9 votes)

Both Major Hearne and Captain Catalano reside within the LFPD district, so they are both eligible to hold the position under the new criteria in KRS 75.031. Under KRS 75.031(1)(a)(7), you are required to appoint a trustee to fill out the remainder of Mr. Derek Jones' term. Mr. Jones' term began July 1, 2025 and it ends June 30, 2029. The LFPD Trustees would appreciate your consideration of the internal election results from the LFPD membership in so filling this vacancy. If you need contact information for either Major Hearne or Captain Catalano, please reach out to LFPD office manager, Susan Ripperdan, at 502-222-1143. Let me know if I can be of any additional assistance to you regarding this subject.

Sincerely,

THEISS LAW OFFICES, PLLC

By 
James D. ("J.D.") Theiss

CC: Mr. Gary Jones; Susan Ripperdan